

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Craig B. Van Rooyen
Judge of the Superior Court
County of San Luis Obispo
1050 Monterey Street Room 220
San Luis Obispo, CA 93408

Re: Rodriguez, Gregory
CDC No.: BE1300
Case No.: 17F-05573-B
Date of Sentence: August 30, 2017

Dear Honorable Craig B. Van Rooyen:

The purpose of this letter is to provide the court with authority to resentence Gregory Rodriguez pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Rodriguez was sentenced in 2017, and was convicted of section 245, subdivision (a)(1), Assault w/Deadly Weapon. The trial court sentenced inmate Rodriguez on August 30, 2017. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Rodriguez's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Rodriguez's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Case Summary
Felony Complaint

cc: Honorable Ginger E. Garrett, San Luis Obispo County Presiding Judge
San Luis Obispo District Attorney
Public Defender

**FELONY ABSTRACT OF JUDGMENT—DETERMINATE
SINGLE, CONCURRENT, OR FULL-TERM CONSECUTIVE COUNT FORM**
(Not to be used for multiple count convictions or for 1/3 consecutive sentences)

BE 1300

CR-290.1

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: SAN LUIS OBISPO					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: GREGORY RODRIGUEZ AKA. CII NO.: A30574800 BOOKING NO.: A00678904		DOB: 11/05/1996	CASE NUMBER 17F-05573-B		
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT ☐ AMENDED ABSTRACT			☐ NOT PRESENT		
DATE OF HEARING 08/30/2017	DEPT. NO. 7	JUDGE CRAIG B. VAN ROOYEN			
CLERK L. HERDA	REPORTER A. HERNANDEZ	PROBATION NO. OR PROBATION OFFICER ☒ IMMEDIATE SENTENCING			
COUNSEL FOR PEOPLE L. BITTNER		COUNSEL FOR DEFENDANT ☒ APPOINTED G. ORTIZ			

1. Defendant was convicted of the commission of the following felony:

COUNT	CODE	SECTION NUMBER	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L. M. U)	SERIOUS FELONY	VIOLENT FELONY	TIME IMPOSED	
						JURY	COURT	PLEA				YRS	MOS.
001	PC	245(a)(1)	Assault w/Deadly Weapon	2017	08/30/2017			X	L	X		02	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL
001	PC12022.7(a)	3Y	PC186.22(b)(1)(A)	2Y			05 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	ENHANCEMENT	TIME IMPOSED, "S," or "PS"	TOTAL

4. Defendant sentenced: ☐ to county jail per PC 1170(h)(1) or (2) ☐ per PC 667(b)-(i) or PC 1170.12 (strike prior) ☐ to prison per PC 1170(a) or 1170(h)(3) due to ☐ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement ☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office upon release.

5. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

Restitution Fine(s): \$2100.00 per PC1202.4 (b) forthwith per PC 2085.5 if prison commitment \$2100.00 per PC 1202.45 suspended unless parole is revoked \$_____ per PC 1202.44 is now due, probation having been revoked.

Restitution per PC1202.4 (f): ☐ \$_____ ☒ Amount to be determined to ☐ * victim(s) ☐ Restitution Fund

* ☐ Victim name(s), if known, and amount breakdown in item 8, below. * ☐ Victim name(s) in probation officer's report.

Fine(s): \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive

☐ Includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

☒ Court Operations Assess.: \$ 40.00 per PC 1465.8. ☒ Conviction Assess.: 30.00 per GC 70373. ☐ Other: \$_____ per (specify): _____

6. TESTING: a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 c. ☐ other (specify): _____

7. IMMEDIATE SENTENCING: ☒ Probation to prepare and submit a post sentence report to CDCR per PC 1203c. Def't Race / National Origin HIS

8. Other orders (specify): Restitution Status Determination Hearing is set 11/13/17 in Dept. 7. Defendant waives right to be present.

9. TOTAL TIME IMPOSED: 07 00

10. ☐ MANDATORY SUPERVISION: Execution of a portion of the total jail time imposed in item 9 is suspended and deemed a period of mandatory supervision under PC 1170(h)(5)(B) as follows: Suspended portion: _____ Served forthwith: _____

11. ☐ This sentence is to run concurrent with (specify): _____

12. Registration Required: ☐ per (specify code section): _____

13. Execution of sentence imposed: a. ☒ at initial sentencing hearing. b. ☐ at resentencing per decision on appeal. c. ☐ after revocation of probation. d. ☐ at resentencing per recall of commitment. (PC 1170(d).) e. ☐ other (specify): _____

DATE SENTENCE PRONOUNCED	CREDIT FOR TIME SPENT IN CUSTODY TOTAL DAYS:	ACTUAL LOCAL TIME	LOCAL CONDUCT CREDITS	TIME SERVED IN STATE INSTITUTION
08/30/2017	152	76	☐ 2933 ☐ 2933.1 ☐ 4019	DMH [] CDCR [] CRC []

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.

☐ county jail ☐ Other (specify): _____

CLERK OF THE COURT: I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE FRANCES O'DONNELL <i>Frances O'Donnell</i>	DATE 09/01/2017
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This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 1